

THE
JUDGES OF ENGLAND.

RICHARD II.

Reigned 22 years, 3 months, and 7 days ; from June 22, 1377,
to September 29, 1399.

SURVEY OF THE REIGN.

A TRAGIC character is given to the legal history of the reign of Richard II. by the murder of two judges, the execution of a third, and the conviction and banishment of the whole bench (with the exception of one member of it) on charges of high treason. The first two fell victims to the indiscriminate rage of a rebellious mob, led on by Wat Tyler and his associates ; and the others suffered, one for introducing, and the rest for submitting to the introduction of, the unconstitutional practice of giving extra-judicial opinions to the sovereign—a practice seldom resorted to but for the purpose of affording an apparent sanction to forced interpretations of doubtful enactments, either oppressive to the people, or stretching the legal prerogatives of the crown. The serious retribution with which the judges were visited on this first occasion, renders it surprising that any others should, in after ages, have been found to incur a similar responsibility : but who can calculate the point to which the subserviency of the weak, the fears of the pusillanimous, or the blindness of the rash, may lead them ?

The circumstances were shortly these. The weakness and extravagance of the king had emptied the treasury; and his favours had been conferred on a set of courtiers who obtained his countenance by encouraging his follies. They gradually acquired so great a portion of the royal power that the nobles became disgusted; while the people complained of the taxes imposed upon them to supply funds which they saw were improperly squandered. The discontent rose to such a pitch, that the parliament which met in Oct. 1386, 10 Richard II., not only impeached the chancellor De la Pole, Earl of Suffolk, one of the favourites, but took all the practical business of the state out of the king's hands, by appointing a number of commissioners by whom all acts were to be done, and the whole expenditure of the kingdom was to be regulated. This ordinance was not only passed into a law, but confirmed by the king's letters patent. The fallen courtiers, and especially the convicted chancellor, advised the king in the following year to resume his authority; and with the intent of enabling him, under the semblance of right, to do so, they took measures to obtain the highest judicial opinion that the ordinance was illegal and derogatory to the king; that the promoters of it were traitors, and liable to the punishment of death; and that the sentence against De la Pole was revocable as contrary to law. Sir Robert Tresilian, the chief justice, who was already devoted to their party, having prepared a series of questions, with answers suitable to the above object, laid them before the judges who had been summoned for the purpose in August, 1387, first to Shrewsbury, and then to Nottingham.

For several years before this period, there had been only one puisne judge of the Court of King's Bench; and I am inclined to think that David Hannemere, who certainly held that office at the end of the previous year, was at this time either dead or dying; for his name does not appear among the judges

who were present; and John de Lokton, who was appointed his successor within two months, was the only serjeant-at-law who seems to have been summoned on the occasion. The judges of the Common Pleas were Chief Justice Robert de Bealknap, William de Skipwith, Roger de Fulthorpe, John Holt, and William Burgh; all of whom attended except William de Skipwith, who was either ill at the time, or perhaps, suspecting the object, pretended to be so. The chief baron, Sir John Cary, was the only member of the Court of Exchequer who was present. The other barons were probably not summoned, as we have seen that they were not looked upon as lawyers, nor could they act as judges of assize.

Whether the answers to the questions propounded were voluntarily given by the judges, or were forced from them under threats and fears of violence, as they afterwards alleged in their defence, may, with regard to some of them, admit of question; but all their seals were attached to the document declaring their opinions, which was dated at Nottingham, on August 25. In November the conspiring favourites were appealed of treason by the Duke of Gloucester and four earls; one of the charges against Tresilian and the rest being, that they constrained the judges to subscribe the answers to these questions. The trial of the appeal was put off till the next parliament, which was fixed to be held on February 2, 1388. Before that day both the chiefs were removed; and on the first day of the session the rest of the judges, except Skipwith, were arrested in open court, and sent prisoners to the Tower.

The proceedings against Tresilian are detailed in a subsequent page. He was condemned to die the death of a traitor, and suffered on February 19. The other judges on March 2 were impeached by the Commons; and, though all of them pleaded constraint, they were convicted and

sentenced to death and forfeiture of their property. On the application, however, of the clergy and other peers, their lives were granted to them; but they were all banished to different parts of Ireland, with a prohibition from practising as lawyers, but with an annual allowance for their sustenance, and two servants to attend each.

After the death of the Duke of Gloucester in 21 Richard II., the judgments pronounced against them were reversed in the parliament which met in January, 1398; and the subserviency of the lawyers to the ruling power was again exhibited, by the chief justices Walter de Clopton and William Thurning, and Judge Rickhill, confirming, on that occasion, the opinions for which their predecessors had suffered.

The office of chancellor was held by ten individuals during this reign, eight ecclesiastics and two laymen, of whom one held the Seals three times and one twice. It was only vacant for two periods of about two months each, when the duties were performed by temporary keepers.

CHANCELLORS AND KEEPERS.

ADAM DE HOUGHTON, Bishop of St. David's, the chancellor at the close of the last reign, was continued in office by the new king.¹ He held the Seal about sixteen months; when

SIR RICHARD LE SCROPE was appointed on October 29, 1378.² Surrendering the Seal in little more than eight months,

SIMON DE SUDBURY, Archbishop of Canterbury, received it on July 4, 1379.³ He was not chancellor on the day of his brutal murder by Wat Tyler and his associates on June 14, 1381, having resigned his place two days before, in

¹ Rot. Claus. 1 Rich. II., m. 46.

² Ibid. 2 Rich. II., m. 25.

³ Ibid. 3 Rich. II., m. 22.

the hope, no doubt, of appeasing the infuriated populace. The office of chancellor was not immediately filled up, but the Seal was placed in the custody of

HUGH DE SEGRAVE, at that time steward of the household, on June 16, 1381, and remained with him till

WILLIAM DE COURTENEYE, Bishop of London, on August 10, 1381¹, was appointed chancellor of England. The bishop's tenure of office was so short, that it looks as if he was only a *locum tenens* for

RICHARD LE SCROPE, who was reinstated within three months. The Roll says, that the bishop delivered up the Seal on November 30, 1381, and that the king gave it to Scrope on December 4; a commission having in the interim been sealed, appointing certain persons to receive the Lady Anne, his future queen, and to conduct her to his presence.² But in the proceedings in parliament on November 18, Scrope is spoken of as "*lors nouvellement crees en Chancellor d'Engleterre.*"³ His refusal to seal some extravagant grants of the king occasioned his removal on July 11, 1382. Another vacancy then occurred for about two months, during which

HUGH DE SEGRAVE, then treasurer, WILLIAM DE DIGHTON, then keeper of the Privy Seal, and JOHN DE WALTHAM, keeper of the Rolls, performed the duties of the Seal till August 8, when WALTER DE SKIRLAWE, having been raised to the office of Privy Seal, was added to them.

ROBERT DE BRAYBROKE, Bishop of London, was sworn in as chancellor on September 20, eleven days after his nomination.⁴ Although the record of his retirement states that he "desired with great earnestness to be exonerated from the office," a quarrel between him and the Duke of Lancaster is supposed to have been the cause of his *supersedeas*, which took place on March 10, 1383.

¹ Rot. Claus. 5 Rich. II., m. 25.

² Ibid. m. 27.

³ Rot. Parl. iii. 100.

⁴ Rot. Claus. 6 Rich. II., p. 1. m. 24.